

The Moonlighting Debate



India's \$150-billion-plus software exports industry—which is spearheaded by IT services giants like Tata Consultancy Services (TCS), Infosys, Wipro, HCL Tech and Tech Mahindra—is currently in the middle of a massive debate around the issue of “moonlighting”, a term popularly used for people taking jobs on the side mostly without informing their primary employer. Ever since Wipro Chairman Rishad Premji tweeted about the issue in August, calling it “cheating—plain and simple”, India Inc. has been on fire with opinion divided around not just about the ethicality of moonlighting, but also what constitutes it. Subsequently, Premji announced he had fired 300 employees who were found to be moonlighting.

Even at *Business Today's* mega India@100 Summit in end-August, tech sector leaders were ranged on both sides of the debate. While TCS's COO N. Ganapathy Subramaniam said people “lose out” in the long term if they resort to moonlighting for short-term gains, Tech Mahindra boss C.P. Gurnani said he would change the policy and sees no problem with it.

In fact, there are no clear answers. While the trend gained ground with remote working being the norm during the pandemic, opinion is divided on whether pursuing a passion outside work hours constitutes moonlighting or whether it is only when someone works for a competitor that it is a problem. While no law other than the Factories Act prohibits dual employment, most employment contracts disallow working elsewhere and outside assignments are allowed only with explicit prior permission. And then there is food delivery firm Swiggy, which even has a clear moonlighting policy. With the mushrooming of freelance job listing websites, people looking for additional income have options outside their workplace, and many opt for that route. A BT poll across social media platforms found a sizeable 44 per cent saying moonlighting isn't cheating, while 30.5 per cent felt it depends on the contract with the employer. Whichever side one is on, the fact is that the world of work has changed irrevocably post the pandemic, and most companies are now being forced to revisit their contracts and figure out what is the ideal way out. Our cover story by Vidya S., Aakanksha Chaturvedi and Binu Paul takes a close look at all aspects of this massive debate and examines what the road ahead could be.

The cover story apart, Ashish Rukhaiyar does a deep dive into the future of foreign banks in India. With their market share shrinking in India—down to just under 4 per cent of loans—many of the leading foreign banks are now playing to their strengths to continue growing. Digital channels, wealth management, start-ups and unicorns, mergers and acquisitions, and global transaction services are among the areas that foreign banks are now focussing on. Elsewhere in this issue, iconic Maruti Suzuki Chairman R.C. Bhargava recalls the 40-year journey of India's storied carmaker. Maruti's evolution is significant because it is inextricably linked with India's growth and ambition. **BT**

Sourav Majumdar
sourav.majumdar@ajtak.com
@TheSouravM

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